

The Tirunelveli City Municipal Corporation-Water Supply Bye-Laws

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The Tirunelveli City Municipal Corporation-Water Supply Bye-Laws

Rule THE-TIRUNELVELI-CITY-MUNICIPAL-CORPORATION-WATER-SUPPLY-BYE-LAWS of 2007

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The Tirunelveli City Municipal Corporation-Water Supply Bye-Laws

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Bye-laws framed under section 432(5) of the Tirunelveli City Municipal Corporation Act, 1994, for provision of drinking water supply connections to the house and other buildings located within the limits of the Tirunelveli Corporation.

These bye-laws contain grant of water supply connection, subsequent changes in the said connections, attending repairs and maintenance, etc. Provisions are also made in the bye-laws for prevention of wastage of drinking water, assessment of the accurate quantity of water consumed through each connection, fixing of meters, construction of storage pits and also provision for fire hydrant purposes.

1.

Under section 432 of the Tamil Nadu Tirunelveli Corporation Act and the Rules made thereunder as amended, every owner of the house or its occupier with the consent letter of the owner is mandated to send an application in Form A for

getting house connection accompanied by an estimate for the provision of water connection. Such owner or occupier should also remit a registration fee of Rs. 100 and send the application along with the particulars of remittance, to the Commissioner of the Corporation. The application will be duly entered according to the date of receipt of the same and the house connections will be given according to seniority. Such applicant should also remit such amount of deposit and estimate amounts as fixed by the Corporation and start the work after getting necessary' permission from the Corporation. The registration fee will not be refunded on any account.

A. 15% on the overall estimate amount for the provision of drinking water connection will be collected as centage and inspection charges. A minimum amount of Rs. 750 will be collected towards inspection charges.

B. For drinking water supply connection in respect of Government building, it is not necessary to remit the deposit and other amounts in advance. They shall be remitted after the issue of permission for the connection.

C. Except for deposit amount, the charges collected will not be refunded. The deposits also will not carry any interest.

D. Whenever the Highways road has to be dug up or damage caused to it in the process of laying pipe lines to facilitate house-connections to the houses the owners or occupiers should repair such Highway road at their own cost as suggested and advised by the Engineers and to their satisfaction. Then only the water supply house service connection will be given.

E. The articles required in connection with the provision of new water supply connection should conform to the parameters fixed by Indian Standard Institute.

F. The house connection work should be undertaken by the house owner himself by employing qualified plumber at their own cost, and such work should be done up to distribution main.

2.

In the case of new water supply connections for residential or non-residential purposes, meters will be fixed and as per the meter reading showing the quantity of water consumed, charges will be collected. For the existing water supply connections where no meter is fixed and charges are collected on tap rate basis, a notice will be issued informing the consumer to get meter fixed up within 60 days and the water supply connection will be charged under meter category. Non-compliance will lead to disconnection of water supply without any further notice.

3.

Whether, a connection is for domestic or non-domestic purposes will be decided in each case as per explanation given under section 432 of the Tamil Nadu Tirunelveli Corporation Act, 1994.

4.

(i)

If through a single connection water is drawn for domestic as well as non-domestic purposes, the charges pertaining to non-domestic purposes will be collected.

For buildings exempted from property tax, water supply connection will be given if permitted by the Corporation Council.

(ii)

Even in the case of buildings owned by the Corporation, such water connections will have only meter reading devices but also appropriate rates of charges will be collected depending upon the domestic or non-domestic use of water by such establishments.

(iii)

Houses for which property tax are not levied will not be given water supply connection. In cases where the houses were already having water supply connection, and the present structure is demolished and fresh constructions are carried out (OR) when additional constructions are undertaken to the existing structure (OR) when major repairs are being carried out and if the Corporation water was used or presumed by the Commissioner that it was used for such construction it will be construed that the water has been used for non-domestic purposes and the rates applicable to commercial purpose will be levied and collected.

(iv)

The Corporation Council may supply water to any local body or other private person outside the local limits of its jurisdiction, with the consent and approval of the Superintending Engineer, Office of Commissioner of Municipal Administration, following the conditions, prescribed by him.

(v)

As per section 200(1) of Coimbatore Corporation Act, 1981, which is applicable to Tirunelveli Corporation, for the buildings for which the annual value is below to Rs.120 and also for the buildings which are exempted from levying of

property, tax, water supply connection may be given after obtaining approval of Taxation and Finance Committee.

5.

Each residential building will be given only one water supply connection. To control the flow of water Ferrules or Flow Control Valve and such other closure devices will be fitted. Water will not be supplied from any other existing nearby residential water,connections or from the proposed "User Connections".

Explanation. - The word "Residential" (house) mentioned in these bye-laws means a portion of a building or buildings or the building treated as a single unit for the purpose of levying property tax.

While giving water supply connection to the houses in multi-storied buildings, property tax will be levied separately for each house. Necessary water supply HSC deposit and monthly charges will be collected separately and water supply connection will be given to each house separately.

6.

In respect of water connections to temple, mosque and churches, the water must be used for drinking purposes only. If the water is used for other than drinking purpose, water charges will be collected in commercial rate.

7.

Subject to the above bye-laws, the Engineer or his authorised official will determine the measurement of the pipes Valves Ferrules Taps to be fixed in the water connections and also the length of the pipes. This will depend upon the flow of water in the main pipe line and the force and water pressure. Such measurements and other fixtures will be according to the following proportions:-

(i)

15 mm pipe connection

10 mm Ferrules

(ii)

20 mm pipe connection

15 mm Ferrules

In case any other measurement is found necessary, only after getting the permission of the Superintending Engineer, Office of the Commissioner of Municipal Administration, the connections will be given. The flow control valves, taps and pipes to be used in all cases should be tested and bear ISI Certificate or should have been approved by the Superintending Engineer, Office of the Commissioner of Municipal Administration. At any rate, such a measurement should not exceed 15 mm. Such materials used by the consumers for water connections should be as specified by the Engineer and in conformity with the standards of ISI.

7.1

For restricting the water flow as not exceeding 7 litres per minute during nominal periods and ensure equitable distribution of water, flow control valve should be fixed to new and the existing water connections. The cost of the valve should be remitted into the Corporation Treasury by the consumer concerned.

8.

If the new house service connections are at a distance of more than 90 meters from the main pipe line, such connections will be given only on specific permission, by the Corporation Commissioner. The nature and measurement of the pipes and the materials used will be determined by the Corporation Engineer.

9.

1. The pipes and other connections of house service connections should be fitted in such a way so as to enable the Corporation Officials or their designated staff to have convenient inspection of the same at all times. The house owner or occupier should provide all facilities for the inspections. If any hurdles are made, it will lead to disconnection of the house connection for the reason of non-inspectability.

9.2

The tap should be fixed in such a way that it is not submerged in water and the entire system must be arranged in such a way that the spill over water or the wastage of water from the water pipe joins the underground drainage channel or the sewage pipe provided by the Corporation.

9.3

The consumer getting drinking water supply connection should himself undertake the work of repairing the damaged roads at his own cost.

10.

1. The meters installed in a house connection should -have been duly approved by the Corporation Commissioner and should be provided by the owners or the tenants of the house. The meters should always be locked or sealed by the Corporation Officers or their authorized officials. The meter readings will be taken every month.

10.2

The meters will be fitted either by the owner or the tenant at their own cost, and a maintenance charge of Rs. 5 will be collected every month.

10.3

If the meters fixed by the owner of the house or the tenant becomes defective, then, such owner or tenant will arrange for the repair of the meters at his own cost, after getting permission. The repair work shall be done within a period of two months under the supervision of the Corporation Engineer after getting necessary permission from the Commissioner. The meter after repair should be handed over to the Engineer in-charge of the Unit Office. Such meters should be functional to the satisfaction of the Unit Engineer and only thereafter the meters should be fixed up again. Non-compliance with the above condition will entail disconnection of the water supply. A fee of Rs. 25 should be remitted for removing the defective meter, re-fixing it after repair and for temporary connection of water supply during the period of rectification of defective meter.

10.4

During the period of meter repairs, charges for the supply of water to the house connection will be collected as prescribed under bye-law No. 16.

11.

Collection of deposits for the provision of drinking water supply:-

(i)

For each house connection for domestic purpose.

(ii)

For each connections for non-domestic,
commercial industrial and all other residuary purpose.

For the existing water supply connections, the difference of deposits should be paid in two equal instalments with in a period of 6 months.

12.

Drinking water charges:-

(i)

Drinking water for domestic use (tap rate)

Rs. 50 per month

(ii)

Drinking water for domestic use up to 10, 000 litres (meter
rate)

Rs. 45

Above 10,000 litres for every 1,000 litres

Rs. 4.50

(iii)

Non-domestic use : For 1,000 litres

Rs. 15

The minimum monthly charges

Rs. 150

For the bulk water supply, charges will be collected in commercial rate.

13.

1. The water consumption charges as per meter reading should be remitted into the Corporation Treasury within 15 days from the date of receipt of demand notice. The demand notice sent before 10th of every month will be for the water consumption of previous month.

13.2

If the water charges are not remitted within the time prescribed under the bye-law above mentioned, the Commissioner of the Corporation is empowered to disconnect the water supply at any time. The Corporation Commissioner will not be liable for any loss or damage on account of such disconnection of water supply, the tenant or the owner of the house alone is responsible.

13.3

If the charges for the drinking water supply are not remitted within the period prescribed under the bye-laws above mentioned, the same will be collected in the manner provided under the rules for the collection of property tax.

13.4

In each case of disconnection of water supply, due to non-payment of water charges, a sum of Rs. 250 towards disconnection and another sum of Rs. 250 towards reconnection of water supply (totally Rs. 500) will be collected along with the water consumption charges or the same should be remitted separately to the Corporation.

13.5

In case of failure to get re-connection of water supply within a period, of one year from the date of disconnection, the water connection will be construed as permanently disconnected.

14.

If for any portion of the quarter of the year, the water is not utilised, there will not be any proportionate remission of water charges. If for the entire period of the quarter of the year, water is not used, the Commissioner has powers for remission of the charges, but the Commissioner must be duly informed about the non-use of the water in advance, by a written communication and the water supply disconnected temporarily. In such a case, a sum of Rs. 250 for disconnection and another sum of Rs. 250 for re-connection will be collected every time.

The quarter of the year referred to in the above bye-laws means 3 months or 90 days.

15.

1. If the meter shows wrong reading or the meter itself becomes defective, the consumer should inform the authorities in writing with full details of the defects and a sum of Rs. 250 should be deposited within a period of 4 weeks or 30 days from the date of noting the readings in the meter.

15.2

Complaints received beyond the above prescribed period of time or without accompanying by deposit will not be considered.

15.3

If during inspection it was found out that there is difference in the readings due to the defect in meter, the deposit amount already collected will be refunded. If it was found out that meter was showing correct reading or the meter was not defective, the deposit amount will be forfeited.'

16.

If the meter fitted to the house connection showed defective reading or the meter was found defective for more than a week, then in such a case, the meter reading recorded during the corresponding month of the previous year will be taken into consideration for assessing the charges of water connection for the period in question. If such particulars couldn't be ascertainable, the Commissioner can determine the quantum of water on the basis of statistics gathered and considered fit and the charges will be assessed and collected, based on the above quantum. The decision of the Commissioner will be final.

17.

No mechanical device or hand pump or electrical motor shall permitted to be fitted in the house connection pipe for lifting water. If such a device was found, the water connection will be disconnected without any notice. Further action will also be taken as envisaged under section 22 (a) of the Tamil Nadu Tirunelveli Corporation Act, 1994.

18.

The pipe carrying water to the house connection should not be directly linked to the water pit or the storage tank. This will not apply in the case of connection under bye-laws 23 and 24.

19.

The owner of the house or its tenant having the water connection to the house should maintain the same in perfect good condition. Any defect in the system should be rectified at the cost of the owner or tenant in the presence of Corporation Officials. Centage charges shall be paid based on the amount of the estimate for the repairs.

20.

The Commissioner (or) the persons authorized by the Commissioner is empowered to remove the water pipe or other connections to the house connection for examining the condition of the connection. If the pipes or other connections are found to be defective, the Commissioner will give a notice of one month's time for rectifying the defect, or putting new pipes in the place of defective ones. If the defect is not rectified within the time granted by the Commissioner or if it comes to the notice of the Commissioner that there will be wastage of drinking water or the purity of the water is likely to be spoiled, the Commissioner can get the defect rectified through the Corporation officials and recover the cost from the owner of the house; or tenant or the Commissioner can cause stoppage of water to the house; connection, after disconnection of the water supply.

21.

The water supplied from the tap connection for domestic use should not be used for any other purpose without the written prior permission of the Commissioner. If such use by the owner of the house or the tenant comes to the knowledge of the Commissioner or the Commissioner has reason to believe in the existence of such use, he can ask the person concerned to pay the charges under bye-laws No. 12 for use of water other than domestic* purpose as per the particulars gathered by him from a particular date, and if the owner of the house or tenant fails to pay the said charges, the Commissioner can order the disconnection of the water supply.

22.

(1)

Taking water by means of a mechanical device through a pipe or through any electrical motor from the mains is prohibited. If such a device is found out, the house connection will not only be disconnected, but also the electrical motor or other mechanical device will be confiscated and such articles will not be returned on any account. Re-connection will be given only on payment of Rs. 7,000 as fine, along with an undertaking that such devices will not be fitted in future. Apart from that the owner or occupier of the house should also pay additional fine amount equivalent to six half-yearly (3 years) total water charges.

(2)

Repetition of use of such mechanical, or electrical, device, for pumping outwater will entail permanent disconnection of the water supply connection. Action will also be taken in a Court or law.

23.

All the applicants requesting drinking water supply connection should make arrangements for the harvest of rain water and also apply for underground drainage connection by remitting the necessary deposit amounts and other amounts for linking the flow of wastage, water to underground drainage, channel. In case underground drainage system is not implemented in those parts of the area, then, sewage water coming out of public conveniences and urinals should be arranged to be collected in a cess pool to the satisfaction of the Commissioner. If any water connection is requested from the drinking water pipe for the public convenience, toilets and urinals, a separate storage pit with necessary implements must be installed in the place fixed by the Corporation Engineer.

24.

No direct connection from the main distribution, pipe line of Corporation will be granted for the boilers. Water should be taken only from the storage tank specially constructed for the purpose. For every such constructed tank, there shall be separate ball (float) tap, watch/alarm device and should be put up in such a way as to facilitate easy inspection by the Corporation Officials.

25.

Except during the time of fire accident, persons without any authorization from the Commissioner/Engineer are prohibited from interfering the main pipe line or the ferrules at the water distribution point and the fire hydrant.

26.

Under orders from the Corporation Commissioner, temporary water connection can be given to the buildings for marriage and other functions. For such extensions of water supply, a sum of Rs. 100/- per day or a portion of a day will be collected. In addition to that, Rs. 250 will be collected for connection from the main pipe line. Another Rs. 250 will be collected for disconnection of the supply. Such an extension will have a 15 mm neat pipe of two meters length. Such water connection will be temporary and for these temporary extensions, the applicant should provide the necessary materials and other implements at their own cost. If additional pipes are required, a sum of Rs. 50 for a day or part thereof for every additional pipe, fitting will be collected. Such temporary connection shall not exceed 5 days at a given time.

27.

1. Tampering with the seal over the meter or break open the lock put on the meter or tampering with the glass fixed on the meter or open or alter the note in the meter or interfere in any way with the recording of the quantity of water used from the meter are all prohibited.

27.2

The practice of taking water from the supply connection prior to the fixation of meter should be avoided.

27.3

Any interference with a view to prevent the functioning of meter reading by causing damage to the meter or removing it from the spot by theft will not be permitted. The consumer should not be a cause for such incidences.

28.

1. These by-laws will be applicable to all the existing water connections also. If the tenant or the owner of the house undertakes to pay all the charges payable to the Corporation, such connections will be declared as legally recognized under the new scheme. If such charges are not paid, such existing connection will be declared as unrecognized connection and water connection will be permanently disconnected.

28.2

The rules and regulations which were followed for the water connections will cease to be operative from the date when the amended bye-laws come into force.

28.3

Those who want to have new water supply connection should pay all the taxes and other non-tax dues till the close of the current financial year and enclose the copy of the receipts along with the application. Then only the application will be taken up for consideration.

29.

If there is any deficiency of water in a storage point of the distribution of water or if that it comes to the notice of the Corporation authorities drinking water intended for domestic or non-domestic purposes has been put to wrong use or if such water supply connections were deliberately damaged, then the Corporation Commissioner has a right to disconnect the supply on 24 hours notice. The Corporation Council or the Commissioner will not in any way be responsible for the loss or inconvenience caused in this connection.

30.

The above bye-laws will also apply to the water supply connections to the establishments controlled and administered by the Government on the basis of the recommendation of the Superintending Engineer, Office of the Commissioner of Municipal Administration.

31.

Whoever violates the above bye-laws or causes damage will be liable for punishment as shown below:-

(1)

A sum of Rs. 500 will be fined with a warning notice to stop further violation or damage; if in spite of such a warning notice such an act continues to be done, then a daily recurring fine of Rs. 25 will be imposed. If the crime is continued, water connection will be disconnected and necessary action will be taken through Court of Law.

32.

The applicant who requires house connection should pay Rs. 25 in the Corporation Treasury and get the Form A.

Bye-Laws for Public Drinking Water Taps

1. No member of the public will allow wastage of drinking water from the public drinking pipe connection or from the fire hydrant, deliberately or by negligence by act.

2. (i) No member of the public will be allowed to take drinking water in a container capable of holding a quantity exceeding 30 liters.

(ii)

Water must be taken only for domestic purposes and for no other purpose.

(iii)

No member of the public will be allowed to take bath, wash clothes, clean carts, bath animals in public tap or storage pit intended for the use of cattle.

(iv)

When others are waiting in queue, one person cannot take water from the public tap more than once continuously.

3. During the time of fire accident only, water can be taken from fire hydrant for putting out fire and water should not be taken from fire hydrant for other purposes.
4. Water can be taken from the public tap or from the fire hydrant only during the fire accident and for no other purpose such water can be utilised. If water from the public tap or fire hydrant is continuously taken for selfish purpose, the person will be subjected to legal action under the provisions of the Corporation Act and the rules made thereunder.
5. No person having contagious or loathsome disease will be permitted to use the public tap or fire hydrant.
6. Animals having loathsome disease or having disease which easily spreads or any other contagious disease should not be taken near the public tap or fire hydrant.
7. No person can cause nuisance around the area of public tap or fire hydrant. Such lapses if found out will be booked under the Corporation Act and legal action will be taken.
8. Except during fire accident, no person will be permitted to take water from the main supply pipe line or distribution line or from the fire hydrant source or from the public tap connected to the Corporation water supply scheme or cause any damage to the same, except the persons permitted by the Commissioner.
9. Around the public tap, no pot or other containers shall be placed in queues. It is also prohibited to waste the water by washing the pots.

Penalty. - Violation of any bye-laws above mentioned by any person or by a child under 7 years under the custody of a person and such person having control over the child will be liable to a penalty up to Rs. 1,000 and if the violation is a continuous affair, the penalty of Rs. 100/- for each day will be inflicted and collected.

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